



United States Department of the Interior

FISH AND WILDLIFE SERVICE



Notice to Offeror

Description: Notice for Architect and Engineering Services to support The US Fish and Wildlife Service, Dam Safety

Classification Code: C – Architect and Engineering Services (A-E)

Location: US Fish and Wildlife Service, United States, Alaska and Puerto Rico

Date for submission of Questions: Date for submission of questions is by 12:00 PM EST on 3/31/2026. Submit questions to sanford_carson@fws.gov

Instructions to Offeror:

1. Before submitting an offer, read the entire solicitation package carefully. Return the following items with your response:

Proposal Due Date: 4/10/2026 by 12:00 PM EST

Your proposal shall be electronically submitted to the Contracting Officer: sanford_carson@fws.gov

If your firm is unable to meet the due date for reasons outside of your control, please notify the Contracting Officer as soon as practicable.

NOTE: Be advised that the controlling law regarding certain terms and conditions of this agreement remains unsettled by the Federal judiciary at the time of award and will be enforced only to the extent permitted by law. Notice will be provided regarding the legal outcomes that impact your agreement.

CONTRACT INFORMATION:

The U.S. Fish and Wildlife Service (FWS) is anticipating negotiating and awarding four (4) Firm-Fixed Priced, Indefinite Delivery/Indefinite Quantity (IDIQ) contracts for Architectural and Engineering (A/E) Services in accordance with FAR Subpart 36.6 – Architect-Engineer Services.

The term of each IDIQ contract will be for a five (5) year ordering period, shall not exceed \$20,000,000 per contract over the five (5) year period, and have a minimum guarantee of \$500. Firm-fixed price task orders will be negotiated and awarded under each contract on an as needed basis. Performance will cover the Continental United States and Hawaii (includes any state or U.S. Territory for the Department of Interior).

The announcement is being issued under a Full and Open Competition strategy, with the intent to reserve at least two

awards for small businesses—if capable—by allowing two awards to be unrestricted and two specifically set aside for small businesses. The North American Industrial Classification System (NAICS) Code is 541330, Engineering Services, which has a current Small Business size standard of \$25.5 million dollars. The Government seeks the most highly qualified firms to perform the required services, based on the demonstrated competence and qualifications, in accordance with the selection criteria which will be provided in the upcoming announcement. A large business awardee must comply with FAR 52.219-9, regarding the requirement for a subcontracting plan for that part of the work to be subcontracted and will be required to submit a detailed subcontracting plan during contract negotiations. For large businesses selected for interviews, specific subcontracting objectives will be requested and negotiated that will form the basis for task order subcontracting performance evaluation. The Small Business selected firms will be required to perform work in accordance with 52.219-14, Limitations on Subcontracting (DEVIATION 2021-O0008, Revision 1) should a task order be issued to a firm within the small business reserve.

FWS is seeking qualified contractors to provide comprehensive technical A/E Services on an as-needed basis in support of the FWS Dam Safety Program, managed by the Infrastructure Management Division, Dam Safety Program. The FWS dam inventory includes approximately 16 high and significant-hazard dams as well as over 300 low-hazard dams, which consist of various types such as zoned and homogeneous earth embankment dams, gravity and arched concrete dams, roller-compacted concrete dams, and composite dams. The heights of these dams range from 6 to 103 feet, and their normal reservoir storage capacities vary from 15 to 254,000 acre-feet. These dams and levees, along with other hydraulic structures, and their appurtenant facilities are operated to promote conservation and enhancement of the fish and wildlife resource.

The awarded contracts will require A/E Services based on the issuance of task orders for, but not limited to, the following services: Safety Evaluation of Existing Dams (SEED) Inspections; Pre-Title I, Title I, Title II, Title III; National Environmental Policy Act (NEPA) Compliance Services, Inspections; Analysis; Design; Preparation of Drawings, Specifications, and Other Construction Documents; Field Investigations; Stability Studies; Risk Analyses and Potential Failure Mode Analysis (PFMA); Hydraulic and Hydrologic Studies; Biological and Cultural Studies, Documentation, Construction Supervision, Consultation, and Clean Water Act Certification and Permitting in support of the FWS Dam Safety Program.

The previous awarded contracts for these services are 140F0521D0001, 140F0521D0002, and 140F0521D0003.

This is a request for SF 330 submissions only. All Information Needed for Interested Parties to Submit a Standard Form (SF) 330, Architect-Engineer Qualifications, is Contained Herein.

SELECTION CRITERIA:

Evaluation factors will be assigned a rating from “outstanding” to “unacceptable”, based on the risk to the Government that the Offeror will successfully perform that evaluated factor. Proposals failing to respond or provide complete information for each factor as required by this solicitation will be determined non-compliant and will be removed from further consideration.

EVALUATION METHOD: Adjectival rating for non-price factors:

Outstanding:

Greatly exceeds the minimum performance or capability requirements in a way beneficial to the Government. There are no significant weaknesses. Those aspects of a factor or sub- factor resulting in an "Outstanding" rating may be incorporated into the resulting contract.

Excellent:

Exceeds the minimum performance or capability requirements in a way beneficial to the Government. There are no significant weaknesses. Those aspects of a factor or sub-factor resulting in an "Excellent" rating may be incorporated into the resulting contract.

Acceptable:

Meets the minimum performance or capability requirements. There may be minor but correctable weaknesses.

Unacceptable:

Fails to meet the performance or capability requirements. There are unacceptable weaknesses,

The A-E firm must demonstrate qualifications for each key team member based on the following factors, listed in descending order of importance:

- **Factor 1** – This is the most important evaluation factor.
- **Factors 2 and 3** – These factors are of equal importance to each other but are less important than Factor 1.
- **Factors 4, 5, and 6** – These factors are of equal importance to each other but are collectively less important than Factors 1, 2, and 3.

Factor 1. Key Personnel, Professional Qualifications (SF 330, Part I, Section E & G):

Firms will be evaluated on professional qualifications, competence, and experience of the proposed key personnel in providing services to accomplish the tasks required under this contract, including participation in example projects in the SF330, Part I, Section G. Key personnel are individuals who will have major contract or project management duties.

Professional disciplines required for key personnel are as follows:

Code	Description	Code	Description
05	Archeologist	34	Hydrologist
12	Civil Engineer	42	Mechanical Engineer
15	Construction Engineering and Inspection	55	Soils Engineer
18	Cost Estimator	57	Structural Engineer
21	Electrical Engineer	62	Water Resources Engineer
24	Environmental Scientist (NEPA Specialist)	-	Diver
30	Geologist	-	Geotechnical Engineer
32	Hydraulic Engineer	-	Seismologist
		-	Surveyor

Submission Requirements: Complete SF 330 Part I, Section E, for each key person who will participate in this contract. The selected firm must have, either in-house or through sub-contractors, the disciplines listed above, with registration required where applicable. The key sub-contractors listed for the projects shall have resume(s) for at least one of the disciplines identified above. The prime contractor shall utilize the same sub-contractors for the duration of the contract unless the Contracting Officer approves a substitution.

Resumes are limited to one page each and should indicate: professional registration, certification, licensure and/or accreditation in appropriate disciplines; cite recent (within the past ten (10) years) project-specific experience in work relevant to the services required under this contract; and indicate proposed role in this contract. Indicate participation of key personnel in example projects in the SF330, Part I, Section G.

Should a firm be selected for contract award, additional positions, labor categories and their associated rates will be subject to

negotiation. Substitutions of Key Personnel must be approved by the Contracting Officer. Key Personnel must oversee all task order work in their disciplines, unless a substitution is approved by the Contracting Officer.

Factor 2. Specialized Experience and Technical Competence (Projects) (SF330, Part I, Section F):

For Factor 2 Offeror's are to show specialized experience and technical competence that meets the A-E Services definition as 40 U.S.C. § 1101 and FAR 2.101 defined in 40 U.S.C. 1101 and FAR 2.101. This factor considers specialized experience and technical competence to support the US FWS Dam Safety inspection program, specific to performing services like those described above in the paragraph titled Project Information.

On the SF 330 Part I, Section F, provide a single page for each project identifying at least five and a maximum of ten projects completed in the past five years preceding the date of issuance of this notice.

Submission Requirements:

Firms are required to submit projects that best demonstrate competencies and specialized experience Section E, Description of Work identified. A task order on an IDIQ contract is considered a project, as is a standalone contract award. Do not list an IDIQ contract as an example of a completed project.

Evaluation will be based on the board's subjective assessment of the firm's ability to address the specialized experience and technical competencies effectively. A firm that more effectively shows a diverse experience range consistent with the description of work will be considered more highly qualified than one that is not. Prime contractor experience will be considered more important than key sub-contractor experience in deciding the most highly qualified firms.

Demonstrate the firm's experience on dam safety projects as follows:

Conducting dam safety inspections using similar format as Safety Evaluation of Existing Dams (SEED Inspection) on dams similar to the size, complexity, and type typical of DOI Bureau and FWS dams; including identifying safety deficiencies, preparing recommendations and costs estimates. The AE shall identify a maximum of six primary engineers who perform all inspections and will be responsible for the reports generated. AE substitutions of primary engineers identified must be approved by the Dam Safety Officer for the DOI Bureau or FWS Dam Safety Officer.

Conducting dambreak modeling, estimating consequences, preparing inundation maps, and developing and exercising Emergency Action Plans (EAPs) for dams similar to the size, complexity, and type typical of DOI Bureau and FWS dams.

Previous experience in performing dam safety analyses for Hydraulic and Hydrologic studies, Seismic studies, Geologic and Geotechnical investigation and studies, Structural analyses, Mechanical and Electrical analyses.

Previous experience performing Potential Failure Mode Analysis, Risk Analysis, Risk Assessment, Risk Management, and Risk Control for high and significant hazard dams similar to the size, complexity, and type typical of DOI Bureau and FWS dams.

Past experience performing Title III services including construction inspection, QA/QC program monitoring, review of shop drawings, materials testing and preparation of "as-built" plans for dams similar to the size, complexity, and type typical of DOI Bureau and FWS dams.

Factor 3. Past Performance (SF330, Part I, Section H):

Past performance will be evaluated based on information in the SF 330 package and the Example Projects submitted in Section F with an emphasis on the quality of work, compliance with performance schedules, cost control, efficient use of resources and stakeholder/customer satisfaction. Evaluation will be based on a subjective assessment by the board of the past performance evaluations submitted. Evaluation of past performance may also include information provided by the firm, customer inquiries, Government databases, and publicly available sources provide. Contractor is solely responsible for the accuracy of this information, as the Government will not pursue contact if provided with inaccurate data. Past Performance information may be collected via any other available means, such as CPARS and use of FPDS-NG, in addition to the POC's provided. Failure to provide requested

data, accessible points of contact, or valid phone numbers may result in a firm being considered less qualified.

Demonstrate the firm's past performance on dam safety projects as follows:

Conducting Pre-Title I, Title I and Title II services on dam similar to the size, complexity, and type typical of DOI Bureau and FWS dams.

Factor 4. Capacity to accomplish the work in the required time prescribed;

Demonstrate adequacy of resources and priority and commitment of the firm and proposed subcontractors to perform work as described in the SOW of this solicitation in the 50 states.

Submission Requirements:

- (i) Describe the firm's present workload and the project team's availability (including sub-contractors) for the specified period of performance. Describe the workload/availability of the key personnel during the anticipated contract performance period and the firm's ability to provide qualified backup staffing for key personnel to ensure continuity of services.
- (ii) Describe the firm's ability to manage, coordinate and work effectively with team members, both internal staff and consultants. Discuss the history of working relationships with team members, sub-contractors, and joint venture partners where applicable.

Evaluation will be based on the board's subjective assessment of the firm's ability to address the resources adequacy effectively as described above.

General statements may be considered less favorably. Teams with a demonstrated history of working together may be considered more favorably.

Factor 5. General Project Approach: (SF330, Part I, Section H)

Submission Requirements:

- (i) Describe your general approach concerning Dam Safety Inspections.
 - (ii) Summarize your Inspection Team Make-up, Inspection Logistics, Identification of and Response to Critical Safety Issues, Report Preparation, and Other Considerations.
 - (iii) Provide a broad range of geographical regions in which you have provided services and how these were accomplished
- Evaluation will be based on the board's subjective assessment of the firm's ability to effectively address the project approach as described above. General statements may be considered less favorably than a more detailed write up of the above requirements.

Factor 6. Knowledge of Locality (SF330, Part I, Section H):

Offers are to clearly show their knowledge of the DOI Bureau and USFWS and any services provided throughout the country concerning the USFWS sites and refuges. This contract will require some remote work and travel to locations throughout the United States. Including remote areas where the DOI Bureaus and USFWS stations are located. Prior experience with DOI Bureaus and USFWS stations and projects in remote areas are preferred. The narrative should describe any known features that are unique to the USFWS or similar agencies. This factor may be assessed Strength or Weakness, as appropriate.

SELECTION OF MOST HIGHLY QUALIFIED FIRMS:

Once evaluations have taken place discussions will be scheduled to select at least four but not more than six of the most highly qualified firms. All firms not considered amongst the most highly qualified will be notified. Evaluation boards will

be held per 48 C.F.R. §§ 1436.602-3 and 1436.602-4.

Interviews will then be scheduled with the selected firms via Microsoft Teams. Firms will be given seven calendar days advance notice to allow responsible representatives to participate in the interviews. All firms will be asked the same exact questions, that may include topics like experience, capabilities, capacity, organization, management, quality control procedures, and approach for the contract, approach for individual task order(s), as appropriate. The interview time shall not exceed 1 hour. The first 45 minutes shall be a presentation by the firm on the criteria above. The remaining 15 minutes will be a question-and-answer session with the AE responding to the questions asked by FWS evaluation team members. At the end of the 1 hour time period the interview is over, and no time extension shall be granted.

After completing the interviews, the board will select the top four firms, as the highest qualified firms and a Request for Proposal (RFP) will be issued requesting Labor Category Rates and a Subcontracting Plan. The list of labor category rates must at least include those positions the evaluation criteria listed. The A/E firm will have fourteen calendar days to submit their price. Late responses will be handled per FAR 52.215-1.

Negotiations will then take place to reach an agreement on fully loaded labor rates. Once the labor rates and the Subcontracting Plan have been approved, an award will be finalized and issued.

SUBMISSION REQUIREMENTS:

Interested AE firms with the capabilities to perform this work are encouraged to submit one (1) complete PDF of their SF330 proposal.

Total pages of SF 330 shall not be more than (60) sixty pages. Cover page (1) and small business participation plan will not count against SF 330 page count.

Offerors submitting proposals shall obtain a Unique Entity Identifier (UEI). Include the UEI in Part I, Section B, Block 5 next to the name of the firm. Additionally, all Offerors must be registered in the System for Award Management (SAM). For instructions on registering with the SAM, go to <https://www.sam.gov/SAM>.

All fonts in Part I shall be at least 11 or larger in Times New Roman or Calibri to include text, tables, and figures. Fonts in Part II shall be at least size 7 or larger and Times New Roman or Calibri. Pages shall be 8-1/2 inches by 11 inches.

Offerors must submit their package to the following:

Sanford_carson@fws.gov
Sanford Carson, USFWS, Contract Specialist

Email submissions shall contain the following in the Subject line:
"140FGA26R0011_(Company Name) (UEI #)"

Point of Contact:

Sanford Carson, Contract Specialist, sanford_carson@fws.gov

The cutoff for submitting questions and inquiries to this solicitation is 12:00 p.m. EST, March 31st, 2026.

Responses / SF 330 Due Date:

All responses (SF 330/Package) to this announcement must be received no later than 12:00 p.m. EST, April 10th, 2026.

Mailing or hard paper copies will not be accepted. If no email response is received within 24 hours of submission, please email the POC @ sanford_carson@fws.gov for confirmation or other means of submission.

OFFERS MUST BE RECEIVED BY THE METHODS INDICATED ABOVE NO LATER THAN 12:00 PM, EST, ON 10th April 2026, OR WILL BE CONSIDERED LATE.

CLAUSES

52.252-2 Clauses Incorporated by Reference.

CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

The following clauses are incorporated by reference:

Clause	Title	Date
52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-6	Restrictions on Subcontractor Sales to the Government	JUN 2020
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	MAY 2014
52.203-12	Limitation on Payments to Include Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-14	Display of Hotline Poster(s)	NOV 2021
52.203-16	Preventing Personal Conflicts of Interest	JUN 2020
52.203-17	Contractor Employee Whistleblower Rights and Requirement to Inform Employees of Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-14	Service Contract Reporting Requirements	OCT 2016
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications	DEC 2014 (amended)
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023

52.204-25	Prohibition of Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on ByteDance Covered Application	JUN 2023
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	JAN 2025
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.210-1	Market Research	NOV 2021
52.215-2	Audit and Records-Negotiation	JUN 2020
52.219-6	Notice of Total Small Business Set Aside	NOV 2020
52.219-8	Utilization of Small Business Concerns	JAN 2025
52.219-9	Small Business Subcontracting Plan	JAN 2025
52.219-14	Limitations on Subcontracting	OCT 2022
52.219-16	Liquidated Damages-Subcontracting Plan	SEP 2021
52.219-27	Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program.	FEB 2024
52.219-28	Post-Award Small Business Program Representation	JAN 2025
52.219-29	Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns	OCT 2022
52.219-30	Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program	OCT 2022
52.222-3	Convict Labor	JUNE 2003
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Works with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts)	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	JAN 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.223-23	Sustainable Products and Services (DEVIATION FEB 2025)	MAY 2024
52.225-13	Restrictions on Foreign Purchases	FEB 2021
52.226-7	Drug-Free Workplace	MAY 2024
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	MAY 2024
52.227-1	Authorization and Consent	JUN 2020
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement	JUN 2020
52.227-11	Patent Rights-Ownership by the Contractor	MAY 2014
52.229-3	Federal, State, and Local Taxes	FEB 2013
52.232-10	Payments Under Fixed-Price Architect-Engineer Contracts	APR 2010
52.232-16	Progress Payments	NOV 2021

52.232-17	Interest	
52.232-23	Assignment of Claims	MAY 2014
52.232-26	Prompt Payment for Fixed-Price Architect-Engineer Contracts	JAN 2017
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-3	Protests after Award	AUG 1996
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.236-5	Material and Workmanship	APR 1984
52.236-22	Design Within Funding Limitations	APR 1984
52.236-23	Responsibility of the Architect-Engineer Contractor	APR 1984
52.236-24	Work Oversight in Architect-Engineer Contracts	APR 1984
52.236-25	Requirements for Registration of Designers	JUN 2003
52.237-2	Protection of Government Buildings, Equipment, and Vegetation	APR 1984
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities	NOV 2024
52.242-5	Payments to Small Business Subcontractors	JAN 2017
52.242-13	Bankruptcy	JULY 1995
52.242-14	Suspension of Work	APR 1984
52.243-1	Changes-Fixed Price—ALT III	APR 1984
52.244-4	Subcontractors and Outside Associates and Consultants (Architect-Engineer Services)	AUG 1998
52.244-6	Subcontracts for Commercial Products and Commercial Services	NOV 2024
52.249-7	Termination (Fixed-Price Architect-Engineer)	APR 1984
52.249-8	Default (Fixed-Price Supply and Service)	APR 1984
52.253-1	Computer Generated Forms	JAN 1991

The following clauses are provided in full text:

52.216-18 Ordering. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from June 2026 through June 2030.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$500.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$3,000,000.00;

(2) Any order for a combination of items in excess of \$3,000,000.00; or

(3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 30 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-21 Requirements. (Oct 1995)

a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the

Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(c) The Government's requirements for each item or subitem of supplies or services described in the Schedule are being purchased through one non-set-aside contract and one set-aside contract. Therefore, the Government shall order from each Contractor approximately one-half of the total supplies or services specified in the Schedule that are required to be purchased by the specified Government activity or activities. The Government may choose between the set-aside Contractor and the non-set-aside Contractor in placing any particular order. However, the Government shall allocate successive orders, in accordance with its delivery requirements, to maintain as close a ratio as is reasonably practicable between the total quantities ordered from the two Contractors.

(d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.

(e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.

(f) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after *December 31st 2030*.

52.216-22 Indefinite Quantity. (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after *December 31st 2030*.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within sixty (60) days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least sixty (60) days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years, six months.

52.204-30 Federal Acquisition Supply Chain Security Act Orders—Prohibition (Dec 2023). As prescribed in 4.2306(c).

(a) *Definitions.* As used in this clause—

Covered article, as defined in [41 U.S.C. 4713\(k\)](#), means—

- (1) Information technology, as defined in [40 U.S.C. 11101](#), including cloud computing services of all types;
- (2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 ([47 U.S.C. 153](#));
- (3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see [32 CFR part 2002](#)); or
- (4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in [41 CFR 201–1.303\(d\)](#) and [\(e\)](#):

- (1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.
- (2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.
- (3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by [50 U.S.C. 3003\(4\)](#), means the following—

- (1) The Office of the Director of National Intelligence;
- (2) The Central Intelligence Agency;

- (3) The National Security Agency;
- (4) The Defense Intelligence Agency;
- (5) The National Geospatial-Intelligence Agency;
- (6) The National Reconnaissance Office;
- (7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
- (8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
- (9) The Bureau of Intelligence and Research of the Department of State;
- (10) The Office of Intelligence and Analysis of the Department of the Treasury;
- (11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
- (12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in [44 U.S.C. 3552](#), means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

- (1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
- (2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.*

(1) Unless an applicable waiver has been issued by the issuing official, Contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA orders as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR [4.2304\(c\)](#)). However, see paragraph (c) of this clause.

(5)

(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) Notice and reporting requirement.

(1) During contract performance, the Contractor shall review *SAM.gov* at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)

(i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) *Removal.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) *Subcontracts.*

(1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

52.252-6 Authorized Deviations in Clauses.

AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any _____ [insert regulation name] (48 CFR _____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

****Department of the Interior Acquisition Regulation (DIAR) – CLAUSES**

1452.201-70 Authorities and Delegations (SEP 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed;
- (5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

1452.203-70 Restriction on Endorsements - Department of the interior (JUL 1996)

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205-1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government, or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the Contracting Officer to make a determination as to the propriety of promotional material.

(End of clause)

1452.204-70 Release of Claims - Department of the Interior (JUL 1996)

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

(End of clause)

1452.215-70 Examination of Records by the Department of the Interior (APR 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215-1), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of clause)

1452.228-70 Liability Insurance - Department of the Interior (JUL 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

\$275,000.00 each person*

\$500,000.00 each occurrence*

\$20,000.00 property damage*

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be

performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

*These amounts to be set by the Contracting Officer.

(End of clause)

1452.237-70 Information Collection - Department of the Interior (JUL 1996)

If performance of this contract requires the contractor to collect information on identical items from ten or more public respondents, no action shall be taken or funds expended in the solicitation or collection of such information until the contractor has received from the Contracting Officer written notification that approval has been obtained from the Office of Management and Budget (OMB) pursuant to the Paperwork Reduction Act of 1980. The Contractor agrees to provide all information requested by the Contracting Officer which is necessary to obtain approval from OMB.

(End of clause)

DOI AAAP-0050 V3 Notice to Contractors

Contractor Performance Assessment Reporting System (December 2015)

1) FAR 42.1502 directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.

2) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in CPARS for Government use in evaluating past performance as part of a source selection action.

3) We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.

4) When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>.

5) Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at <https://www.cpars.gov/>.

a) Contractor Representatives may then provide comments in response to the evaluation, or return the evaluation without comment.

b) Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.

c) All information provided should be reviewed for accuracy prior to submission.

d) If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".

e) Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in CPARS marked as "Pending" with or without comments and whether or not it has been closed.

f) If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

6) The following guidelines apply concerning your use of the past performance evaluation:

a) Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.

b) Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.

c) Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

7) If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.

8) A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

Local Clause

Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP)

(February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. Invoice billed according to contract line items and rates.
2. If final payment is billed, the last invoice shall state "FINAL"

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

SOLICITATION PROVISIONS

52.252-1 Solicitation Provisions Incorporated by Reference.

SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

The following provisions are incorporated by reference:

Provision	Title	Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions	SEP 2024
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation	JAN 2017
52.204-7	System for Award Management	NOV 2024
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-17	Ownership or Control of Offeror	AUG 2020
52.204-22	Alternative Line Item Proposal	JAN 2017

52.209-2	Prohibition on Contracting with Inverted Domestic Corporations-Representation	NOV 2015
52.209-7	Information Regarding Responsibility Matters	OCT 2018
52.209-13	Violation of Arms Control Treaties or Agreements - Certification	NOV 2021
52.215-1	Instructions to Offerors-Competitive Acquisition	NOV 2021
52.216-27	Single or Multiple Awards.	Oct 1995
52.222-38	Compliance with Veterans' Employment Reporting Requirements	FEB 2016
52.225-20	Prohibition on Conducting Restricted Business Operations in Sudan-Certification	AUG 2009
52.222-25	Prohibition on Contracting With Entities Engaging in Certain Activities or Transactions Relating to Iran - Representation and Certifications	JUN 2020
52.237-1	Site Visit	APR 1984

The following provisions are provided in full text:

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.

REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at [52.204-26](#), Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at [52.212-3](#), Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at [52.204-26](#), or in paragraph (v)(2)(ii) of the provision at [52.212-3](#).

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the

facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that—

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—
It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.216-1 Type of Contract.

TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a *Firm Fixed Price Contract, multiple Award Task Order IDIQ* contracts resulting from this solicitation.

(End of provision)

52.233-2 Service of Protest.

SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section [33.101](#) of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (Ryan Boisvert: ryan_boisvert@ios.doi.gov) by obtaining written and dated acknowledgment of receipt

from *Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.*

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

Department of the Interior Acquisition Regulation (DIAR) – PROVISIONS

1452.215-71 Use and Disclosure of Proposal Information - Department of the Interior (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) “Trade Secret” means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) “Confidential commercial or financial information” means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers “commercial and financial information obtained from a person and privileged or confidential,” and exemption (9), which covers “geological and geophysical information, including maps, concerning wells.”

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

“The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract.”

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

“This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal.”

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government

shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

1452.233-2 Service of Protest Department of the Interior (Deviation)

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

Attachments:

Attachment 1 SF330-21a

Attachment 2 Statement of Work AE IDIQ Dam Safety